



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11154

NO-Renewal

EXPIRATION DATE: January 21, 1994

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: CSX Transportation, Incorporated
Jacksonville, Florida.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation of a DOT Specification 105A300W tank car, containing a class 3 material, which does not fully comply with all DOT requirements and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.29(c)(2); 173.31(a).
5. BASIS. This emergency exemption is based on CSX Transportation, Incorporated's application of October 21, 1993, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Vinylidene chloride, inhibited	3	UN 1303	I

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 105A300W tank car, GATX 24741, with a failed tank shell. The point of failure has been patched to prevent release of product.
 - b. TESTING - Tank car GATX 24741 must be reinspected and retested prior to the tank car being refilled.
 - c. MARKING - Tank car GATX 24741 must be marked "DOT-E 11154" in four inch letters on a contrasting background above the DOT specification number.

NOT Active

- d. MOVEMENT CONTROLS - Tank car GATX 24741 must be moved on flat car MTTX 91278 securely fastened to prevent movement during transportation.

8. SPECIAL PROVISIONS.

a. Shipment of tank car GATX 24741 is authorized from CSX Transportation, Lebanon Junction, Kentucky, to Rail Services, Incorporated, Calvert City, Kentucky, a distance of approximately 200 miles utilizing the most direct route via CSX Transportation and Paducah and Louisville Railroad.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration (FRA) is to be notified if any unusual incident occurs such as derailment or exterior tank car damage during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

OCT 29 1980

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA